



CITY OF BERKELEY

Berkeley Rent Board

Annual General Adjustment

The Annual General Adjustment (AGA) allows landlords of most units fully covered by Berkeley's Rent Ordinance to raise the rent by a set percentage with proper notice.

THE AGA ALLOWS LANDLORDS TO RAISE RENTS FOR MOST FULLY COVERED RENTAL UNITS

Each year the Berkeley Rent Board passes an Annual General Adjustment (AGA) in October. On January 1, the rent ceilings for most units fully covered by the Rent Ordinance increase by the AGA, which allows landlords to raise rents (with proper notice) up to the new rent ceiling. The AGA is set by taking 65% of the Consumer Price Index for All Urban Consumers in the Bay Area from July 1 through June 30 of the prior year. If this formula produces an AGA that is greater than 5%, the AGA is capped at 5% (this cap was changed by [Measure BB](#) from 7% to 5%).

CURRENT AGA

The AGA for 2026 is 1.0%

You can use our [AGA Calculator](#) to calculate the allowable rent increase.

CASES WHERE A RENT INCREASE IS PROHIBITED

Landlords cannot raise the rent for the rest of the year in which the tenancy started, and for one additional calendar year. For example, if a tenancy starts on March 1, 2026, the landlord cannot raise the rent for the rest of 2026, or in 2027. The landlord may take the first AGA rent increase in 2028 with proper notice to the tenant.

No matter when a tenancy started, a landlord cannot take the AGA if:

- The landlord has not fully paid Rent Board registration fees
- There is an order from the Rent Board denying AGAs (generally due to a decrease in services or substandard conditions)
- There are serious repair problems or outstanding housing code violations
- The landlord has failed to pay interest on the security deposit for the unit

In order to dispute a landlord's eligibility to apply an AGA, the tenant(s) must file a Rent Board petition. The hearing examiner will decide whether the landlord may use the AGA to raise the rent.

SPECIAL NOTE ON GOVERNMENT OWNED/SUBSIDIZED UNITS

After a unit's rent ceiling is adjusted upward, by the AGA, owners must still go through the subsidizing agency's rent increase approval process (if there is one) to receive more rent.

TENANTS WITH A FIXED-TERM LEASE

If a tenancy is eligible for the AGA but the tenant has a fixed-term lease, the landlord will have to wait until the lease term expires to impose the AGA unless the lease allows the increase.

PROPER NOTICE OF RENT INCREASE

Landlords must provide a 30-day written notice for a rent increase of 10% or less, or a 90-day written notice for increases of more than 10%.

“BANKING” OF UNUSED ANNUAL GENERAL ADJUSTMENTS

▼ خيارات

إيقاف اللغة: الإنجليزية

ترجمة

عرض هذه الصفحة باللغة: العربية



If a landlord chooses not to take an AGA rent increase in a given year, they do not lose it. Landlords can “bank” unused AGAs and then raise the rent to the rent ceiling at any time if they provide the tenant with proper notice, even if the total rent increase exceeds 5%. The 5% AGA cap limits only the AGA percentage set by the elected Rent Board.

A NOTE ABOUT THE REGISTRATION FEE PASS-THROUGH

The Berkeley Rent Board did **NOT** authorize a pass-through for the FY 2026-27 registration fee. Landlords may adjust rents as otherwise permitted under the Rent Ordinance, but cannot increase any tenant’s rent as a result of the FY 26-27 registration fee.

RELATED DOCUMENTS

[Notice of Rent Increase \(30/90 Days\) for the Annual General Adjustment \(108.46 KB\)](#)

[En Espanol: Aviso de Aumento De Renta para AGA \(137.15 KB\)](#)

[List of Annual General Adjustments: 1981 - 2026 \(158.75 KB\)](#)

[AGA 2026 Order: Regulation 1148 \(112.75 KB\)](#)

[AGA 2026: Public Notice \(105.5 KB\)](#)

[AGA 2026: October 16, 2025 Staff Report \(1.81 MB\)](#)

News



Berkeley Rent Board to Host Inaugural Landlord Resource Fair on July 22



UPDATED: Rent Board Adopts to Extend Amnesty Period for Units Newly Required to Register Under Measure BB



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UPDATED: Registration Fees for Fiscal Year (FY) 2026-2027

Email: rent@berkeleyca.gov

Phone: (510) 981-7368 (RENT) Ext. 1

BERKELEY RENT BOARD

2000 Center St., Suite 400, Berkeley, CA 94704, M, T, Th, F: 9 am - 4:45 pm
(Closed Wed.)



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